

July 24, 2026, Civil Law & Motion Tentative Rulings

The following tentative rulings are issued by the Hon. Judge Linfield.

**1. CU0001962 PUDIWITR, LLOYD LEONARD ET AL VS. GRASS VALLEY
COURTYARD SUITES, LLC**

Defendant Grass Valley Courtyard Suites, LLC moves to compel Plaintiff Lloyd Pudiwitr to provide code-complaint responses and further document production in response to Defendant's Requests for Admissions, Set One, From Interrogatories No. 17.1 and Inspection Demands. Defendant also requests \$2,475.00 in monetary sanctions.

COURT'S TENTATIVE DECISION:

Request for Admission No. 2: "Admit that YOU have been involved in one or more accidents prior to the INCIDENT."

Denied. The term "accidents" is overbroad and unintelligible.

Request for Admission No. 4: "Admit that YOU have been involved in one or more accidents after the INCIDENT."

Denied. The term "accidents" is overbroad and unintelligible.

Request for Admission No. 18: "Admit that YOU attempted to walk on the staircase identified in YOUR COMPLAINT during the night."

Granted. Responses to be provided within 20 days.

Request for Admission No. 19: "Admit that YOU had attempted to walk on the staircase identified in YOUR COMPLAINT when there was snow and/or ice on the staircase."

Granted. Responses to be provided within 20 days.

Request for Admission No. 20: "Admit that YOU knew there was snow and/or ice on the staircase identified in YOUR COMPLAINT before you attempted to walk on it."

Granted. Responses to be provided within 20 days.

Form Interrogatory No. 17.1:

Granted as to RFA's Nos 18, 19, 20. As Plaintiff states in his opposition, "Defendant's Form Interrogatory No. 17.1 argument rises or falls with the RFAs." (Opp., p. 7:2.) Since the Court is granting Defendant's request for code-complaint response to RFA's Nos. 18-20, it is also granting Defendant's Request for code-complaint responses to Form Rog, No. 17.1 as to those RFA's. Responses to be provided within 20 days.

Inspection Demand No. 19: “Produce all DOCUMENTS and ESI evidencing any medical treatment, assessment, examination or care that YOU received from five years prior to the INCIDENT to the date of YOUR responses herein.”

Denied. This request is overbroad and invades Plaintiff’s right to privacy in his medical records.

Defendant’s request for sanctions is DENIED.

2. CU0002030 TITLE, JERRY V. SAVALIN, RICK DAWSON ET AL

Gregory Gerald Callison is to appear for his examination as previously scheduled at 10:00 am on 7/24/2026 in Dept. 6 of the Nevada County Superior Court.

3. CU001323 SHIRLEY, RYAN VS. DYNASTY VALLEY, LLC

Motion to Approve PAGA settlement

BACKGROUND:

The parties have reached a settlement agreement of this PAGA action. There are approximately 460 Aggrieved employees who worked 10,425 PAGA Pay Periods. (Motion to Approve PAGA Settlement, p. 5:12-13.) The agreement allocates \$200,000.00, to pay individual PAGA payments, PAGA counsel’s attorneys’ fees, PAGA Litigation Expenses, a Service Award to Plaintiff and Administration Expenses. (Motion, p. 5:15-19.) After these deductions, the PAGA civil penalties will be divided 75% to the LWDA and 25% to the Aggrieved Employees. (Motion, p. 5:19-22.)

The parties are asking the Court to approve a Service Award to Plaintiff of \$10,000. (Motion, p. 6:5-8.) Plaintiff’s counsel is asking for 1/3 of the award as attorneys’ fees (\$66,666.67) and \$13,432.15 in Litigation Expenses. (Motion, p. 6:9-18.) They are also asking for up to \$5,950.00 in Administration Expenses. (Motion, p. 6:19-22.)

The parties claim that the “Settlement of \$200,000.00 penalizes Defendant for the alleged violations of California’s labor laws in an amount significant enough to deter alleged violations and provide genuine and meaningful relief.” (Motion, p. 10:13-15.) The also note that the \$200,000 settlement “represents approximately 19.2% of the non-stacking maximum penalty of \$1,042,500.00” which according to the parties is reasonable in light of the risks of going to trial. (Motion, p. 15:26-28.) Plaintiff also states that their experts have calculated Defendant’s maximum exposure at \$3,932,400.00. (Motion, p. 16:21.)

The parties state that “[i]n the context of mediation, Defendant represented through its counsel that it has experienced material financial difficulties that constrain its ability to fund a substantially larger settlement.” (Motion, p. 18:4-7.)